

Gudiya alias Sapna and others v. State of U.P. and others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 21 September 2024 · 2024:AHC-LKO:65382-DB · Writ - C No. 8158 of 2024 · **Writ dismissed; no mandamus without the owner's NOC.**

HEADNOTE

The Lucknow Bench dismissed a writ seeking restoration of a disconnected connection or a new connection without the owner's no-objection. Accepting that para 4.4 of the Electricity Supply Code, 2005 forbids the licensee to connect without that no-objection, the Court held that the petitioners, whose licence to occupy ended on their predecessor's death, had shown no subsisting legal right to a mandamus compelling the licensee to act against that clause.

FACTUAL SUMMARY

Petitioner no. 2's mother occupied a house of opposite party no. 6 under an affidavit licence later confined to her lifetime. She died on 20 December 2023. The owner pressed the family to vacate and applied to the distribution licensee, after which account no. 8074218045 was disconnected. On 12 August 2024 petitioner no. 2 sought a new connection. The licensee required the title-holder's no-objection, which opposite party no. 6 refused. The petitioners then sought mandamus for restoration or a fresh connection without that no-objection.

REUSABLE CONSTRUCTIONS

1. Para 4.4 of the Electricity Supply Code, 2005 disables the distribution licensee from releasing a connection unless the owner of the premises gives a no-objection. ¶ 5-6
2. Mandamus will not compel the licensee to restore or grant supply without the owner's no-objection where the applicant's only pleaded licence to occupy ended with the lifetime occupant's death. ¶ 3-6

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Owner's no-objection required before a new connection

HOLDING

Under para 4.4 of the Electricity Supply Code, 2005, the distribution licensee cannot give an electricity connection without the no-objection of the owner of the premises. The petitioners' pleaded right was only a licence limited to the lifetime of petitioner no. 2's mother, who had died, and the owner refused the no-objection. They showed no subsisting legal right on which mandamus could issue to restore the old connection or to grant a new one contrary to that clause. The writ was dismissed. ¶ 5-7

PRINCIPLE TAGS

owner-consent-mandatory-for-new-connection-clause-4.4 The licensee refused a fresh connection unless the title-holder gave a no-objection. The Court treated para 4.4 as forbidding supply without that no-objection and dismissed the mandamus, the petitioners having shown no subsisting right to occupy after the lifetime licence ended. ¶ 5-7